



Protecting your children in Rhode Island in case you are deported, detained, or otherwise unavailable

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How can I protect my children in Rhode Island?

If you think you might be detained or deported, making a plan for someone to care for your child can help create stability in their care and allow someone trusted to be in charge of them.

Making a family preparedness plan involves the following steps:

- Memorize any important phone numbers.
- Make copies of your legal documents, such as your passport or birth certificate. Tell your family members where you keep them.
- Make arrangements for a trusted adult to pick up or care for your children in an emergency.

- Fill out the legal forms to name a guardian/caregiver for your child in case you are detained.
- Apply for a passport for your U.S. citizen child so they are able to travel to and from the U.S.

This guide will help you create a plan for your children's care. **If you want more general information on your rights as an immigrant and how to protect yourself during ICE raids you can read about that here:**

- [On the web](#)
- [For download](#)

Naming someone to care for your children

You can arrange ahead of time for a person to automatically be responsible for your children in case you are detained or deported. This person, called a **temporary guardian/caregiver**, should be trustworthy, caring, and able to take care of your children in every way. A temporary guardian/caregiver only makes decisions for your children if you are not available.

Temporary guardianship takes effect as soon as you are detained. **It is temporary and it lasts until you take charge of your children again.** It can be reversed by you at any time.

You do not need to go to court to name someone as a **temporary guardian/caregiver**. **You can name a temporary guardian/caregiver by filling out some simple forms**, as long as the other parent of your children agree to your choice of guardian. If your child's other parent has had their parental rights taken away by a court or has died, you may also name the **temporary guardian/caregiver without the permission of the other parent**.

If you have questions about naming someone to care for your children or about your immigration rights, see [Where can I get help](#), below

What does a temporary guardian/caregiver do?

A temporary guardian/caregiver

- cares for your children;
- gets medical care for your children;
- makes financial decisions for your children;
- gives your children food, clothing, and shelter;
- makes sure your children go to school;
- helps them in general with their education.

A temporary guardian/caregiver can apply for benefits for your child.

Medical Insurance

The temporary guardian/caregiver must make sure your child gets medical care. If your child is a U.S. citizen and gets Medicaid/RIteCare medical insurance, the children's coverage will usually continue when the temporary guardianship starts.

Education

The guardian can make all educational decisions for your child. Your child will usually go to school in the district where the guardian lives, although there are some exceptions. Even if your child moves to a new school district with the guardian, your child can finish the school year at the school they have been attending.

Cash Assistance (RI Works)

Your child may be able to get cash assistance even if the temporary guardian/caregiver is not eligible. They can apply for your child.

Social Security

If your child gets Social Security disability payments, those will continue. The temporary guardian/caregiver must fill out papers with Social Security in order to get the money for your child.

Food Stamps

If the temporary guardian/caregiver qualifies for food stamps, then they can apply to add your child to the food stamp household.

How do I name a temporary guardian/caregiver for my child?

You will have to fill out **a few simple forms. We strongly recommend that you get the forms notarized.** See below for information on notary services. However, if you cannot get them notarized, you should still sign them and **they are legally effective even if they are not notarized.** You don't have to go to court to fill these out. There is **no cost to fill out the forms.** They can all be found here in **English** and in **Spanish (Español)** (The forms are presented in Spanish for the benefit of Spanish speakers. However, the only one that has to be completed is the English version).

1. Fill out the information card for each child in your family from page 7 of the Family Preparedness Packet.
2. Fill out and make copies of the family information card on pages 8-9 so each child has one
3. **In front of a notary if possible**, sign the Parental Authorization/Appointment of Guardian Form on pages 11-12
 - This form allows the appointed guardian to make general decisions for your children
 - Make sure to list each child's full name
4. **In front of a notary if possible**, sign the Authorization for Release of Educational Records and Appointment of Guardian for Educational Purposes form on pages 13-14
 - This form allows the appointed guardian to access educational records and make educational decisions for your children
5. **In front of a notary if possible**, sign the Power of Attorney for Healthcare form on pages 15-16

- This form allows the appointed guardian to make medical decisions and authorize medical treatment for your children

Where can I access a free notary?

Community Action Partnership of Providence (CAPP)

Public libraries near you

Bank with which you have a bank account

United Way of Rhode Island (Dial 2-1-1) - they will be able to direct you to notary services and language services

How do I apply for a passport for my child?

We strongly recommend that you apply for a passport for any U.S. citizen children under the age of 16 while you are still in the United States. A U.S. passport will allow them to travel to and from the U.S, including to visit family. It will also provide proof of citizenship in case your child is detained. The following video will take you through the step-by-step process to apply for a passport for a child under 16 years of age. A detailed checklist is available on the U.S. Department of State website, in [English](#) and [Spanish](#).



Apply for a Passport for your Child – English

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Where can I get help?

AMOR Support Line - (401) 675-1414

Dorcas International Institute of Rhode Island - (401) 784-8600

Progreso Latino - (401) 728-5920

Catholic Immigrant and Refugee Services (Rhode Island) - (401) 421.7833 ext.229

Rhode Island Bar Association Lawyer Referral - (401) 421-7799 or 521-5040

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